Document: Council's latest ETS compromise avoids the most political questions

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By James Fernyhough, Ben Munster, Ben Makuch · Nov 2, 2026, 3:49 PM · View in your browser

The Irish presidency of the Council of the EU has proposed minor changes to measures on carbon removals, waste incineration and shipping in its latest attempt at a member country position on the Emissions Trading System review.

But the draft compromise, obtained by POLITICO , steers clear of the most contested topics, such as how ETS revenues should be spent and the speed at which the cap on allowances is tightened each year.

The draft "aims at taking into account delegations' comments and includes corrections and clarifications to the Commission proposal," but "does not include amendments to the main political aspects of the Commission proposal."

The result is a text that largely stands by the Commission's proposal — though that is unlikely to remain the case. Member countries will next meet on Wednesday to discuss the review.

Most of the changes are light. For example, the Commission's original text proposes only granting free permits once the installation has provided a plan for investing in decarbonization. Of those free permits, 20% should be withheld until the receiver shows they have invested the money.

The Council's amendment adds a line saying the other 80% of free permits should not be affected if the receiver fails to invest the money.

On carbon removals, the compromise removes explicit mentions of nature-based removals and carbon farming.

In the section laying out the conditions for member countries to successfully request exemptions from bringing waste incineration under the ETS, the compromise now requires the Commission to come to a decision within three months of an application.

It also adds a line ensuring there is not overlap with a carbon pricing scheme for shipping under the International Maritime Organization, which is currently under negotiation.

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